

P. Mohanraj v. Shah Brothers ISPAT Pvt. Ltd. (2021)

Section 138 NI Act Dishonour of Cheques & IBC Moratorium

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Citation & Forum: (2021) 6 SCC 258 | Supreme Court of India

Core Legal Principle: Core Ratio: Section 14 IBC moratorium covers quasi-criminal Section 138 proceedings against the company.
Proceedings against individual directors/signatories can still proceed notwithstanding company moratorium.

Key Precedent Note: Harmonizes corporate insolvency with commercial negotiable instrument liabilities.